

While the Sheriff contends that he would have had to deny or “immediately revoke” the CCW permit under Penal Code, § 26195 if a permit were issued, this is not apparent from the facts in this record. The revocation *would* be required if the petitioner had “knowingly” provided “inaccurate or incomplete information” in connection with his application. (Pen. Code, § 26195 (b)(1)(B).)

To the extent 26195 contains a mandatory requirement that the Sheriff deny the permit, this is reconcilable with the requirement that the Sheriff also comply with the § 26202 (b) procedural requirements for determining who is a “disqualified person.” These two statutes containing mandatory duties of the Sheriff can reasonably be reconciled if the Sheriff is required to consider whatever additional information would be elicited during the required interview in making the “knowingly” determination.

Petitioner does not seek mandate to compel the issuance of a permit, a result that might be characterized as “absurd” if the Sheriff immediately *had* to revoke it. (See Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 9:1-10.) Instead, petitioner seeks to have his application processed under the requirements mandated by statute.

While the Sheriff may have discretion to deny the application *after* the requirements in 26202 (b) are met, there is no statutory exception to undertaking these requirements. The Sheriff’s failure to follow these statutory procedures in making the disqualified person determination was arbitrary, capricious, and lacking in evidentiary support because the Sheriff did not adequately consider all relevant factors (such as the opportunity of an in-person interview wherein petitioner could explain his application responses further).

In making this determination, the Court is not reweighing evidence, just requiring the correct procedures to be followed.

D. No Alternative Remedy

The Sheriff argues petitioner has an alternative remedy, to apply for the CCW permit in Brentwood, where he currently resides. Petitioner argues the remedy is inadequate because his denial by respondent would adversely affect his ability to be granted a CCW permit by Brentwood. Sheriff fails to refute this argument. It is plausible that denial by one licensing authority could be used as a reason for denial by the other. The Court finds this is not an adequate remedy.

18. 9:00 AM CASE NUMBER: N26-0887

CASE NAME: PETITION OF:MARY MCNEILL

HEARING IN RE: PETITION FOR RELEASE OF LIEN

FILED BY:

TENTATIVE RULING:

Petitioners Mary McNeill and Jonathan Cotham seeks to cancel mechanic’s liens. The liens were recorded May 20, 2025 and June 2, 2025. Civil Code § 8460 requires action to enforce within 90 days. There has been no extension of credit or action to enforce, and more than 90 days have passed. Petitioner gave notice to the lienholder and received a response that the lienholder would respond, but also that the lien was being released. There appears to be no opposition. The Petition is Granted.

Law & Motion
Add On

19. 9:00 AM CASE NUMBER: N25-0895

CASE NAME:

DISQUALIFY DEFENSE FIRM

FILED BY:

TENTATIVE RULING:

Petitioner James Adcock has filed a Motion to Disqualify Defense Firm in this Petition arising out of an Underinsured Motorist arbitration. The Petition was filed relating to a “dispute . . . with respect to discovery” on May 2, 2025. Petitioner filed the motion to disqualify attorney Shirin Delkhah and the Law Firm of Tosci, Doyle, Houvener & Wellen on April 14, 2026. The Motion was originally set for hearing on July 23, 2026. Shortly before that date, Petitioner notified the Court that he had not served Respondent with the Motion—an ironic twist given the nature of this Motion—and the Court continued the hearing to August 13, 2026, to give Respondent a chance to oppose the Motion. The Court is now in receipt of an opposition and a reply.

This is, at core, a discovery dispute and Petitioner spills much ink on the underlying discovery dispute. The Court cannot, on the evidence before it today, and especially not on this Motion—which is about disqualification—resolve the underlying the discovery dispute about whether Petitioner’s rights have been violated. The *sole issue* before the Court on this Motion is whether counsel for State Farm has engaged in misconduct sufficient to warrant disqualification.

Although the record is confusing, it appears to the Court that counsel had a third party serve subpoenas. Counsel appears to have missed that Petitioner’s counsel had left his firm and started at a new firm, and did not properly update her third party. Subpoenas were therefore not properly served. It *appears* that the third party subsequently misprinted the proofs of service such that they are false—showing service at Mr. Lombardini’s new address long before he moved there. While it is possible that someone falsified these proofs of service purposely, it is equally possible that in reprinting them, a software program grabbed Mr. Lombardini’s new address and they became *inadvertently* falsified. What is evident to the Court in either situation is that there is no clear information that *counsel* engaged in this misdeed.

While the Court would certainly expect all subpoenas for personal information to follow all statutory provisions, and that counsel would engage in honest and direct communication, there is nothing before the Court conclusively showing that that did not occur.

The Motion is therefore **denied**.